

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM08
Commissioner Sharon M Anderson
Temporary Judge Catherine Evans

Date: 08/05/2026

Court Room Rules and Notices

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#	Case Name	Tentative
1	Harper – Trust; 30-2025-01466038	Motion for Preliminary Injunction Petitioner Kent Harper’s Motion for Preliminary Injunction Freezing the Assets of the Trust (ROA 22) is GRANTED. Pursuant to Code of Civil Procedure section 526, Petitioner seeks a preliminary injunction preventing Respondent Kirk E. Harper, trustee of The Stephany A. Harper Trust dated May 12, 2011 (Trust), from expending trust funds to litigate this matter. “[T]he question whether a preliminary injunction should be granted involves two interrelated factors: (1) the likelihood that the plaintiff will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief.” ((<i>White v. Davis</i> (2003) 30 Cal.4th 528, 554.) “An order granting or denying a preliminary injunction is not a dispositive ruling adjudicating the rights of the parties. “It merely determines that the court, balancing the respective equities of the parties, concludes that, pending a trial on the merits, the [respondent] should or . . . should not be restrained from exercising the right claimed by him [or her].”” (<i>Santa Clara Water District v. Eisenberg</i> (2026) 117 Cal.App.5th 714, 727.) The question here is whether Respondent, as trustee, is entitled to use trust funds to pay for his defense in this litigation. Article VI of the Trust (ROA 35, Exhibit 1) identifies the specific powers

		given to the trustee: power to invest; power to loan to, buy from or sell to the Trust; power to borrow money and encumber Trust assets; and power to administer the Trust's real estate. The power to fund litigation is not included as a specific power. According to the preliminary paragraph of Article VI, the specific powers set forth are granted in addition to any powers conferred by law. Respondent seems to suggest Probate Code section 16004.5 gives him the power to maintain a litigation reserve. However, the reserve authorized by section 16004.5(b)(a) is for "taxes, debts, trustee and accounting fees, and costs and expenses of administration" not for litigation. Probate Code section 16247 empowers a trustee to hire attorneys to "advise or assist the trustee in the performance of administrative duties." Litigation is not an administrative power. In the absence of a trust provision specifically to the contrary, a trustee is not entitled to utilize trust funds to defend litigation when, as here, the dispute is "over who will enjoy the benefits and who will control the trust." (<i>Zahnleuter v. Mueller</i> (2023) 88 Cal.App.5th 474, 484.) Because the Trust does not grant Respondent the power to use Trust funds for this litigation and pursuant to Probate Code section 17206, the motion is GRANTED. Petitioner is directed to give notice.
2	Mills – Conservatorship; 30-2024-01388539	Motion for Attorney Fees Petitioner Zachary Tyler Mills's unopposed Motion for Payment of Family Law Attorney's Fees and Costs Pursuant to Probate Code § 2440(a)(4) is GRANTED in the amount of \$15,000.
3	Hernandez – Trust; 30-2022-01266339	Motion for Attorney Fees